

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE
4 FOR
5 HOUSE JOINT
6 RESOLUTION NO. 1019

By: Roberts

7 COMMITTEE SUBSTITUTE

8 A Joint Resolution directing the Secretary of State
9 to refer to the people for their approval or
10 rejection a proposed amendment to the Constitution of
11 the State of Oklahoma by adding a new Section 8 to
12 Article III; imposing requirements with respect to
elections; requiring general election races to have
certain characteristics; authorizing enabling
legislation; providing ballot title; providing for
noncodification; and directing filing.

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15 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
16 1ST SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

17 SECTION 1. A new section of law not to be codified in the
18 Oklahoma Statutes or in the Constitution reads as follows:

19 This initiative shall be known and may be cited as the "Ensure
20 each general election race for federal, state, and county officers
21 has representation from every recognized political party that had a
22 candidate file for the race (EQUAL REPRESENTATION) Initiative".

23 SECTION 2. The Secretary of State shall refer to the people for
24 their approval or rejection, as and in the manner provided by law,

1 the following proposed amendment to the Constitution of the State of
2 Oklahoma by adding a new Section 8 to Article III thereof, to read
3 as follows:

4 A. In all elections for federal, state, and county officers,
5 except for judicial branch officers, the following shall be
6 required:

7 1. Each political party recognized by the laws of this state
8 shall have the opportunity to nominate a candidate for the General
9 Election for federal, state, and county officers in the manner
10 provided by law. The candidate must have filed during the timeframe
11 designated by Oklahoma law and become the political party's nominee
12 by winning the party's primary outright or by winning the party's
13 runoff, or by winning as an unopposed candidate in the manner
14 provided by law.

15 2. Nothing in this section shall be construed to limit the
16 authority of the Legislature to enact a mandatory primary system as
17 provided in Section 3 of Article III of this Constitution.

18 B. 1. This section shall remain in effect unless and until it
19 is repealed by a vote of the people by initiative or referendum as
20 provided in this Constitution.

21 2. An initiative or referendum to repeal this section shall
22 contain no subject other than the repeal of this section.

23 C. The Legislature shall have the authority to implement this
24 section with appropriate legislation. The implementation shall be

1 completed in the first legislative session following passage of the
2 Constitutional amendment.

3 SECTION 3. The Ballot Title for the proposed Constitutional
4 amendment as set forth in SECTION 2 of this resolution shall be in
5 the following form:

6 BALLOT TITLE

7 Legislative Referendum No. _____ State Question No. _____

8 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

9 This measure would amend the Oklahoma Constitution. It would
10 add a new Section 8 to Article 3. If the measure passes,
11 elections for federal, state, and county officers would have to
12 be conducted in a specific manner. Each general election race
13 shall include a candidate from every political party recognized
14 under Oklahoma law and had a candidate run for the race. The
15 candidate must have filed during the timeframe designated by
16 Oklahoma law and become the political party's nominee by winning
17 the party's primary outright or by winning the party's runoff in
18 the manner provided by law. Nothing about this measure would
19 amend, modify, or limit the ability of the Legislature to
20 provide for a system of primary elections. The provisions of
21 this section would remain the law unless pursuant to an
22 amendment to the Constitution by means of an initiative petition
23 or a measure referred to a vote of the people by the
24 Legislature. An initiative petition or a referendum measure

1 could only contain a provision to repeal this section and could
2 not contain an amendment to this section. The Legislature would
3 have the ability to enact laws in order to implement the
4 provisions of this section.

5 SHALL THE PROPOSAL BE APPROVED?

6 FOR THE PROPOSAL - YES _____

7 AGAINST THE PROPOSAL - NO _____

8 SECTION 4. The Chief Clerk of the House of Representatives,
9 immediately after the passage of this act, shall prepare and file
10 one copy thereof, including the Ballot Title set forth in SECTION 3
11 hereof, with the Secretary of State and one copy with the Attorney
12 General.

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